

V.Latha vs The Superintendent Of Police on 19 March, 2010

Author: K.Chandru

Bench: K.Chandru

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 19.03.2010

CORAM

THE HONOURABLE MR.JUSTICE K.CHANDRU

W.P.NO.5512 of 2010

and

M.P.NOs.1 and 2 OF 2010

V.Latha

.. Petitioner

Vs.

- 1.The Superintendent of Police,
Thiruvannamalai District.
- 2.The Deputy Inspector General of Police,
Vellore Range,
Vellore.
- 3.The Inspector General of Police,
North Zone,
Chennai.

.. Respondents

This writ petition is preferred under Article 226 of the Constitution of India praying for

For Petitioner : Mr.M.Muthappan

For Respondents : Mr.N.Senthilkumar, AGP

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ORDER

The petitioner has filed the present writ petition, seeking to challenge the order, dated 20.6.2009 passed by the first respondent Superintendent of Police, Thiruvannamalai District and confirmed by the order of the second respondent, Deputy Inspector General of Police, Vellore Range, Vellore, dated 16.12.2009.

2.By the order, dated 20.6.2009, the first respondent imposed a punishment of postponement of increment for one year without cumulative effect. However, subsequent to the order, the first respondent himself proposed a suo motu review on the earlier penalty imposed. On the basis of the suo motu review proposal, the second respondent initiated suo motu review on the penalty proposed and issued a show cause notice to the petitioner, by proceedings, dated 7.10.2009. After getting the petitioner's explanation, the second respondent by an order, dated 16.12.2009 imposed a penalty of reduction from the post of the Head Constable to that of Grade I Police constable for a period of two years to be spent on duty. It is against these orders, the writ petition has been filed.

3.Heard the learned counsel for the petitioner and Mr.N.Senthilkumar, learned Additional Government Pleader taking notice.

4.While the petitioner was working as Head Constable at the All Women Police Station, Polur, Thiruvannamalai District, a charge under Rule 3(b) of the Tamil Nadu Police Subordinate Services (Discipline and Appeal) Rules, dated 26.12.2008 was framed against her. The charge against the petitioner was that she had married one Vijayakumar, S/o.Manicka Udayar of Seelapandal Village, knowing that he is already having his first wife alive. After marriage with the said Vijayakumar, contrary to the desire of his first wife and her children, the petitioner tried to intervene in the sale of the family properties and created disharmony and obstacle to the family life.

5.In the Annexure-II to the charge memo, it was stated that the petitioner joined as a Constable on 10.5.1991. After joining duty, in 1992 she got married to Vijayakumar and got children through him. The said Vijayakumar was already a married person to one woman Kotteeswari and he had three children through his first wife. Statements were recorded from the said Vijayakumar, his first wife Kotteeswari and Master Prakash, S/o.Vijayakumar. She also got involved in the family partition and sale of the properties by helping in filing a civil litigation in O.S.No.220 of 2003 in the Sub Court, Thiruvannamalai. She was helping the said person in selling his properties. Because of the role played by the petitioner, harm was caused to the children of Kotteeswari and to her. The conduct of the petitioner is in clear violation of Rule 23(1)(a) of the Tamil Nadu Subordinate Officers Conduct Rules, 1964.

6.The Superintendent of Police, Thiruvannamalai appointed the Deputy Superintendent of Police, District Crime Branch, Thiruvannamalai as an Executive Officer. In the enquiry conducted by the Deputy Superintendent of Police, five witnesses were examined on the side of the department and eight documents were filed. The first witness Prakash, S/o.Vijayakumar had stated that her mother Kotteeswari and sister Priya and another brother Raj were living together. He was having born deformity on his right hand. The said Vijayakumar was carrying on Agriculture. Without the knowledge of his mother in 1992, Vijayakumar married the petitioner. Only after some time, they came to know about the marriage. Cheating his father, the petitioner took three acres of land and

the sale deed to the other person known to her. Without the consent of his mother, the petitioner sold the property. When P.W.1 and his mother went to his father and asked about the property, his father went underground. The purchaser of the property on approach through a counsel, returned only one acre. When the petitioner came to know about these developments, she started threatening them by showing her power being the police official. A false complaint was given against him and he has to come on bail and sign every day before the police. Subsequently, on a complaint being given to the first respondent, the said condition was waived. They have already sent a complaint to the second respondent and on such complaint, his statements were recorded.

7.The second witness on the side of the Government was Vijayakumar, the husband of the petitioner. He had stated that he married Kotteeswari in the year 1981. They had two sons and one daughter. Only with the knowledge of his first wife, he married the petitioner. The fact that he was already married to Kotteeswari was not known to the petitioner and after marriage, he started living with the petitioner in Thiruvannamalai. Even the age attaining ceremony of his daughter was conducted by both the families and in the invitation for the said ceremony, the names of both his wives were put. Both wives were living together for one year. Had also stated that his first wife filed a suit against him and after getting Court order, she got back 1-1/2 acres of land through the order of Sub Court, Thiruvannamalai in O.S.No.220 of 2003. They alone are enjoying the said land. Even a storied house was also in their enjoyment through court order. His first wife told him that since both the properties were given through court order, she will not take any action against the petitioner.

8.His first wife Kotteeswari was examined as P.W.3. She informed that she married the said Vijayakumar and is having three children. Without her knowledge, her husband married the petitioner. She came to know about the same subsequently. Her own family properties were sold by her husband, in which a witness signature was put by the petitioner. The petitioner along with her husband Vijayakumar was running a family. Therefore, she gave a complaint to the police officials.

9.The fourth witness was the Deputy Superintendent of Police, Polur Sub division, who conducted preliminary enquiry. The fifth witness was an another Deputy Superintendent of Police, Kancheepuram Town. He stated that the stand of the petitioner that she is not aware of the first marriage of her husband cannot be believed.

10.The petitioner on her side examined four witnesses. The first witness (DW.1) was one Ramanuja Naicker, who was examined to prove that his sister's grandson Vijayakumar was initially married as per family custom to Kotteeswari, i.e. P.W.3. He got married to the petitioner in 1992. Only then he came to know that the marriage of Vijayakumar with the petitioner. When he questioned Vijayakumar, he stated that there was lot of differences of opinion between him and his first wife. Therefore, without anyone's knowledge, he married the petitioner. Thereafter, he convened a meeting of Village elders who made them to stay together. They had lived together for three years at Seelapandhal. When Vijayakumar got injured, he necessarily got to sell the property. Subsequently, the matter went to the court and they got a portion of the land.

11.The second witness D.W.2, the brother of Vijayakumar, had stated that Vijayakumar and his first wife Kotteeswari were frequently quarrelling. His elder brother convened a caste panchayat and on

the basis of the advise of Panchayat, they were living separately. Only thereafter, he married second time to the petitioner. The third witness D.W.3 was one Rajamanickam, who is a Caste Panchayatdar. He had stated that Vijayakumar had appeared before him and stated that he suspected the conduct of his first wife and does not want to live with her. Therefore, a panchayat was convened. In that Kotteeswari, the first wife denied the charges. On the contrary, she abused her husband for his conduct. Despite conciliation made, it could not succeed. Thereafter, the Village Panchayatdar decided and a divorce deed was written in five rupees stamp paper. His first wife refused to sign. However, she continued to live in the house of Vijayakuamr along with her children. However, we stated that the relationship between Vijayakumar and Kotteeswari was broken and there is no further relationship between them. He also signed as a witness to the document.

12.The fourth witness D.W.4, an another Panchayatdar, had also stated the execution of document for bringing separation between Vijayakumar and his first wife. Though the petitioner cross examined the first witness Prakash, S/o.Vijayakumar and P.W.3, Kotteeswari she could not elicit anything in her favour. In her defence statement, the petitioner stated that there was contradiction in the statement made by various witnesses. She tried to rely upon the dissolution marriage deed prepared by the panchayat and the resolution of the caste panchayat was also produced. She also stated that she was not aware of the fact of their marriage before her marriage. Further, she did not get involved in the sale of the property. She also stated that Kotteeswari had signed the document in the suit that she will not question the validity of the marriage of the petitioner with Vijayakumar, P.W.2.

13.In her statement, she also stated as follows:

"He has however clearly admitted during her cross examination that both the families were living jointly only for three months fearing threat from her and PW.2. The facts are available on records-vide ration card, invitation card issued by her for the celebration of the daughter of PW.3 on attaining her age of puberty, loan application form of PW.3 for sanction of advance for purchase of LPG Gas connection with her signature as surety etc. They would prove that both the families were living jointly and happily for over one year during 2002, 2003."

14.The Enquiry Officer, on the materials produced before him, came to the conclusion that the first charge, i.e. she got married to Vijayakumar knowing fully well that he was already married, was clearly proved. Her defence statement that she was not aware of the previous marriage and Vijayakumar had hidden that fact to her, was not correct. It was only an afterthought to escape from the charge. With reference to the interference in the family dispute regarding the sale of property, it is seen that she had also signed as a witness in the sale deed. Therefore, the enquiry officer held that both the charges were proved.

15.The first respondent agreeing with the enquiry report issued a punishment of postponement of increment for one year without cumulative effect by an order, dated 20.6.2009. It was thereafter, the very same Superintendent of Police had considered that the punishment should be reviewed by the higher authorities. Thereafter, the second respondent issued a show cause notice and considered

her explanation.

16. In the reply to the show cause notice issued by the second respondent, the petitioner had stated as follows:

"The resolution of Seelapandal village panchayatdars passed as early on 27.3.91 prior to my alleged marriage in 1992, in having dissolved the marriage held between P.W.2 and P.W.3 with the consent to the latter and the O.S.220/03 filed by P.W.3 against P.W.2 before the Hon'ble Court of Principal and Sessions Judge, T.V.Malai, confirming the dissolution of her marriage with P.W.2 for claiming maintenance charge and for due share of properties for her children and the consequential order of the Hon'ble Judge passed thereon, would simply prove that the dissolution of the marriage of P.W.2 with P.W.3 is valid. The contents found in the show cause notice that I had accepted the delinquency of having married P.W.2 while P.W.3 his first wife was alive, is not correct. What I meant is that I had marital relationship with P.W.2 only in 1992 that too after dissolution of the marriage with P.W.3 as early on 27.3.1991. It is therefore obvious that the E.O. had not considered all the above aspects but has laconically held the charge proved arbitrarily."

17. Considering the petitioner's explanation, the second respondent imposed a punishment of reduction in rank by an order, dated 16.12.2009. In the final order, it was stated that for violation of Rule 23(1), a maximum punishment can be given. Considering the circumstances of the petitioner, it was decided that the imposition of penalty of increment cut was wholly improper. But considering the over all circumstances, she should be reduced in rank for two years from Head Constable to Grade I Police Constable.

18. The short question that arises for consideration is that whether this court under Article 226 of the Constitution of India can interfere with the penalty imposed on the petitioner under Rule 23(1) of the Tamil Nadu Subordinate Services Conduct Rules, 1964.

19. Rule 23(1) reads as follows:

"Rule 23. Bigamous Marriages:-

1.(a) No Police Officer shall enter into a contract marriage with a person having a spouse living and

(b) No Police Officer having a spouse living shall enter into or contract a marriage with any person:

Provided that the Government may permit a Police Officer to enter into or contract any such marriage as is referred to in clause (a) or clause (b) if they are satisfied that,

(i) such marriage is permissible under the personal law applicable to such Police Officer and the other party to the marriage; and

(ii) there are other grounds for so doing.

2.No Police Officer shall involve himself in any act involving moral turpitude on his part including any unlawful act, which may cause embarrassment or which may bring discredit to Government."

20.In the present case, the fact that the petitioner married a person who is already married stood proved. Her defence before the enquiry was that she was not aware of the first marriage of the said Vijayakumar. However, it is seen that her entire attempt was that there was dissolution of marriage between Vijayakumar and Kotteeswari as per Caste Panchayat resolution and thereafter, she got married. In fact, after introduction of the Hindu Marriage Act, 1956 and in the absence of any recognised custom of caste panchayat allowing dissolution of marriage, such stand of the petitioner cannot be accepted. Only the designated court can grant such a decree. The alternative stand taken by the petitioner gives discredit to her earlier stand about her not having knowledge of the previous marriage. In any event, the rule do not only talk about the bigamy marriage, but also it has been expanded to include that living with another married person is also now considered as a misconduct under the very same relevant rule. Therefore, the first charge clearly stood proved.

21.In so far as the second charge was concerned, the fact that she signed the sale deed as a witness was also proved as spoken to by D.W.3 and D.W.4. In normal circumstances, this court had always upheld the punishment including major penalty such as dismissal or removal against a male government servant as such conduct is considered to be a serious misconduct, which cannot be lightly dealt with. But, in the present case, the second respondent considered the petitioner being women had let her off with a diluted version of major penalty, i.e. reduction in rank that too for a period of two years only. Originally, the first respondent imposed the penalty of postponement of increment. He later did not think that it can be a correct punishment since such punishment would have resulted in deprivation of Rs.1000/- only, especially the punishment was given without cumulative effect. In order to make it more deterrent, he recommended for a suo motu review. The review procedure had been duly followed by the second respondent. The second respondent took note of the said fact and had let of the petitioner with the lowest major punishment and that too restricted it to last for only two years.

22.In this context, it is necessary to refer to the judgment of the Supreme Court in State of Karnataka and another Vs. T.Venkataramanappa reported in 1996 (6) SCC 455 where a similar rule came up for consideration. The following passage found in para 3 may be worth quoting:

"The prosecution evidence in the criminal complaint may have fallen short of those standards but that does not mean that the State was in any way debarred from invoking Rule 28 of the Karnataka Civil Service Rules, which forbids a government servant to marry a second time without the permission of the Government. But, here, the respondent being a Hindu, could never have been granted permission by the Government to marry a second time because of his personal law forbidding such

marriage. It was thus beyond the ken of the Tribunal to have scuttled the departmental proceedings against the respondent on the footing that such question of bigamy should normally not be taken up for decision in departmental enquiries, as the decisions of competent courts tending to be decisions in rem would stand at the highest pedestal. There was a clear fallacy in such view because for purposes of Rule 28, such strict standards, as would warrant a conviction for bigamy under Section 494 IPC, may not, to begin with, be necessary."

23.As noted already in normal circumstances, if the same misconduct was committed by a man in uniform, he would have even lost his post itself. But in the present case, considering that the petitioner was a women constable, she was only let off with less severe penalty among major penalties. Therefore, this court sitting in a jurisdiction under Article 226, is not inclined to interfere with the penalty. The said penalty cannot be said to be either disproportionate or not incommensurate with the misconduct committed by the petitioner.

24.In the light of the above, the writ petition will stand dismissed. No costs. Consequently, connected miscellaneous petitions stand closed.

19.03.2010 Index : Yes Internet : Yes vvk To

- 1.The Superintendent of Police, Thiruvannamalai District.
- 2.The Deputy Inspector General of Police, Vellore Range, Vellore.
- 3.The Inspector General of Police, North Zone, Chennai.

K.CHANDRU, J.

vvk W.P.NO.5512 of 2010 19.03.2010